

CV 15 4882

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

NICHOLAS JOHN,

Plaintiffs,

COMPLAINT

Jury Trial Demanded

-against-

THE CITY OF NEW YORK, Police Officer
GERARD FENTON, Shield No. 6680, Police
Officer JAMES BURNETT, Shield No. 11314,
Police Office JOHN SWOFFORD, Shield No.
12809, Police Officer JOHN and JANE DOE #
1 through 10 in their individual and official
capacities as employees of the City of New
York,

COGAN, J.

Defendants.

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U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

Plaintiff, NICHOLAS JOHN, by his attorney, Amy Rameau,
Esq., alleges the following, upon information and belief, for this
Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42U.S.C. §§ 1981, 1983, and 1988, the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution, and the common law of the State of New York, against the defendants mentioned above in their individual and official capacities, and against the City of New York.

2. On September 29, 2014, Defendants GERARD FENTON, Shield No. 6680, JAMES BURNETT, Shield No. 11314, Police Officer JOHN

SWOFFORD, Shield No. 12809, Police Officer JOHN and JANE DOE # 1 through 10 (collectively, the "Defendants") unlawfully arrested Plaintiff without probable cause and then assaulted and seriously injured him, all without any justification or due cause.

3. Plaintiff seeks compensatory and punitive damages and an award of attorneys' fees and costs pursuant to 42 U.S.C. § 1988.

4. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

5. This action has been commenced within one year and ninety days after the happening of events upon which the claims are based.

JURISDICTION

6. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343. Plaintiff also asserts jurisdiction over the City of New York under 28 U.S.C. §§ 1331 and 1367. Plaintiff requests that this Court exercise pendent jurisdiction over any state law claims arising out of the same common nucleus of operative facts as Plaintiff's federal claims.

VENUE

7. Under 28 U.S.C. § 1391 (b) and (c), venue is proper in

the Eastern District of New York.

PARTIES

8. Plaintiff NICHOLAS JOHN was at all material times a resident of the City of New York, New York State, and of proper age to commence this lawsuit.

9. Defendant GERARD FENTON, Shield No. 6680 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D.") , acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacities.

10. Defendant JAMES BURNETT, Shield No. 11314 was at all relevant times an officer employed by the N.Y.P.D., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual and official capacities.

11. Defendant JOHN SWOFFORD, Shield No .12809 was at all relevant times an officer employed by the N.Y.P.D., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York

and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual and official capacities.

12. Defendants JOHN and JANE DOE 1 through 10 were at all relevant times an officer employed by the N.Y.P.D., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacities.

13. Defendant City of New York (hereinafter "The City") is, and was at all relevant times, a municipal corporation duly organized and existing pursuant to the laws, statutes and charters of the State of New York. The City operates the N.Y.P.D., a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of officers and supervisory officers, including the Defendants.

FACTUAL ALLEGATIONS

14. Plaintiff is an African-American male.

Incident 1.

15. On July 5, 2014, at approximately 08:00 p.m., Plaintiff was in the area of 959 Saint Marks Avenue, when defendant SWOFFORD and the JOHN DOE defendants ("July Defendants"),

approached Plaintiff without justification or provocation and assaulted Plaintiff.

16. The July defendants threw Plaintiff onto the ground with brute force, cuffed Plaintiff and kicked him several times.

17. The July defendants then dragged Plaintiff to an awaiting police vehicle and transported him to the 77th Precinct.

18. At the precinct, the July Defendants falsely informed members of the Kings County District Attorney's Office that they had observed Plaintiff committing various crimes.

19. At no point did the Defendants observe Plaintiff committing any crimes or offenses.

20. Ultimately, Plaintiff was taken from the precinct to Brooklyn Central Booking.

21. Defendant JOHN SWOFFORD thereafter informed the Kings County District Attorney's Office that Plaintiff "attempted to strike" him and "swung ... closed fist" at him.

22. This information was false. Plaintiff offered absolutely no resistance when SWOFFORD was arresting Plaintiff.

23. The assigned prosecutor thereafter incorporated SWOFFORD's false accusations against Plaintiff in the complaint, which SWOFFORD signed.

24. On or about February 11, 2015, all charges against Plaintiff were dismissed and sealed.

Incident 2.

25. On September 29, 2014, at approximately 4:30 p.m., Plaintiff was walking in the area of Saint Marks Avenue and Kingston Avenue of Brooklyn, New York, when defendants FENTON and BURNETT and other JOHN DOE defendants ("September Defendants") started running in Plaintiff's direction.

26. Once the September Defendants approached Plaintiff, he put his hands up indicating his surrender. Nevertheless, September defendants acting in concert attacked Plaintiff. They threw Plaintiff onto the ground face down, handcuffed Plaintiff, and put him in a chokehold.

27. The September Defendants then dragged Plaintiff to an awaiting police vehicle and transported him to the 77th Precinct.

28. At the precinct, the September Defendants falsely informed members of the Kings County District Attorney's Office that they had observed Plaintiff committing various crimes.

29. At no point did the September Defendants observe Plaintiff committing any crimes or offenses.

30. Ultimately, Plaintiff was taken from the precinct to Brooklyn Central Booking.

31. Defendant GERARD P. FENTON thereafter informed

the Kings County District Attorney's Office that Plaintiff resisted arrest by "pushing closer with fists balled up."

32. This information was false. Plaintiff offered absolutely no resistance when FENTON was arresting Plaintiff.

33. The assigned prosecutor thereafter incorporated FENTON's false accusations against Plaintiff in complaint.

34. On or about January 8, 2015, all charges against Plaintiff were dismissed and sealed.

35. As a result of the Defendants' actions, Plaintiff suffered serious physical injuries, mental and emotional harm of a permanent nature, loss of liberty, loss of reputation, and other damages.

COUNT ONE
False Arrest, New York State Tort
Law Against All Defendants

36. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

37. The Defendants, individually and in concert, arrested, confined, caused the confinement, and/ or continued the September 2014 confinement of Plaintiff without any privilege whatsoever, with the intent to confine, or cause the confinement of, Plaintiff.

38. Plaintiff was conscious of his confinement.

39. Plaintiff did not consent to his confinement.

40. Plaintiff's confinement was not otherwise privileged.

41. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT TWO
False Arrest, 42 U.S.C.
§ 1983 Against All
Defendants

42. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

43. The Defendants, individually and in concert, and acting under the color of law, deprived Plaintiff of his rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable searches and seizures and to his liberty by searching, arresting, confining, causing the confinements, and/ or continuing the confinements of Plaintiff without any privilegewhatsoever.

44. Plaintiff was conscious of his confinements.

45. Plaintiff did not consent to his confinements.

46. The Defendants each deprived Plaintiff of his rights intentionally, knowingly, willfully, or recklessly, under color of law.

47. As a direct and proximate result of the misconduct

and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT THREE
Assault and Battery, New York
State Tort Law Against All
Defendants

48. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

49. The Defendants intentionally touched Plaintiff and caused him serious physical injury in the September 2014 incident.

50. The Defendants' touching of Plaintiff was harmful and offensive and occurred without legal justification, excuse, or privilege.

51. Plaintiff did not consent to physical contact by any of the Defendants.

52. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

53. As a direct and proximate result of the misconduct

and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT FOUR
Excessive Use of Force, 42 U.S.C.
§ 1983 Against All Defendants

54. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

55. The Defendants intentionally touched Plaintiff for both incidents.

56. The Defendants' touching of Plaintiff involved the use of excessive physical force and caused and/ or exacerbated serious injuries to Plaintiff.

57. Plaintiff did not consent to the excessive physical contact by any of the Defendants, and they lacked legal justification, excuse, or privilege for their conduct.

58. By virtue of the foregoing, the Defendants each deprived Plaintiff of his right under the Fourth Amendment to the United States Constitution to be free from the excessive use of force.

59. The Defendants each deprived Plaintiff of his rights intentionally, willfully, or recklessly, under color of law.

60. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT FIVE
Substantive Due Process, U.S.C.
§ 1983 Against All Defendants

61. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

62. The Defendants each maliciously and sadistically abused their government power in their actions toward Plaintiff.

63. These actions were of a kind likely to, and which in fact did, produce substantial injury to Plaintiff.

64. The Defendants treated Plaintiff in a manner that shocks the conscience.

65. The Defendants thus violated Plaintiff's right to substantive due process under the Fifth and Fourteenth Amendments to the United States Constitution.

66. The Defendants each deprived Plaintiff of his rights intentionally, willfully, or recklessly, under color of law.

67. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT SIX
Cruel and Unusual Punishment, 42
U.S.C. § 1983 Against All Defendants

68. Plaintiff repeats and realleges each and every allegation

above as if fully set forth herein.

69. The Defendants intentionally inflicted unnecessary and wanton pain and punishment upon Plaintiff by punching, kicking, and stomping him.

70. By intentionally inflicting unnecessary and wanton pain and punishment upon Plaintiff, the Defendants violated Plaintiff's rights under the Eighth and Fourteenth Amendments to the United States Constitution.

71. The Defendants each deprived Plaintiff of his rights intentionally, willfully, or recklessly, under color of law.

72. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT SEVEN
Due Process/ Fair Trial, 42 U.S.C. §
1983 Against Defendant FENTON

73. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

74. Defendant FENTON deprived Plaintiff of his rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution by manufacturing false evidence through his account that Plaintiff had resisted arrest.

75. FENTON used this false evidence to initiate criminal proceedings against Plaintiff.

76. The State thereafter used this evidence to initial criminal proceedings against Plaintiff.

77. As a result, Plaintiff was deprived of his liberty.

78. FENTON deprived Plaintiff of his rights intentionally, willfully, or recklessly, under color of law.

79. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages herein alleged.

COUNT EIGHT
Respondent Superior
Liability Against the
City of New York

80. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

81. The aforementioned conduct of the Defendants occurred while they were on duty and was within the scope of their authority as officers.

82. Thus, Defendant City of New York is liable to Plaintiff for his damages under the doctrine of *respond eat superior* for the actions of the officers in the September 2014 arrest.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that this Court:

(a) Award compensatory damages

against the defendants, jointly and severally, for not less than \$1,000,000;

(b) Award punitive damages against the individual defendants, jointly and severally;

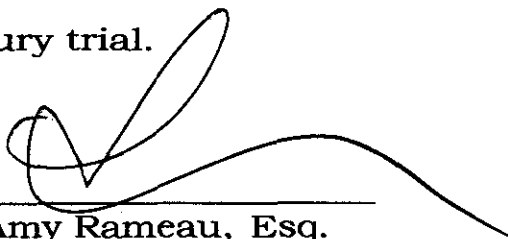
(c) Award costs of this action to the Plaintiff;

(d) Award reasonable attorneys' fees and costs to the Plaintiff pursuant to 42 U.S.C. § 1988;

(e) Such other and further relief as this Court deems just and proper.

JURY
DEMAND

Plaintiff hereby demands a jury trial.



Amy Rameau, Esq.
16 Court Street, Suite
2504 Brooklyn, New York
11241
ATTORNEYS FOR

PLAINTIFF

DATED: August 19, 2015
Brooklyn, New York

TO: All Defendants
Corporation Counsel of the City of New York